PECH GROUP HOLDINGS LTD

Technology & Infrastructure Enablers for Africa

PECH GROUP HOLDINGS

Non-Disclosure Agreement

1. PARTIES

This Non-Disclosure Agreement ("Agreement" or "NDA") is entered into as of the date last signed below (the "Effective Date") by and between:

DISCLOSING PARTY:

PECH Group Holdings Ltd, a company incorporated under the laws of the Federal Republic of Nigeria, with its principal office located in Lagos, Nigeria (hereinafter referred to as "PECH" or the "Disclosing Party").

Website: pechgroupholdings.tech

RECEIVING PARTY:

Name: _____

Title/Position: _____

Organisation (if applicable): _____

Address: _____

Email: _____

Phone: _____

(hereinafter referred to as the "Receiving Party")

The Disclosing Party and the Receiving Party are individually referred to as a "Party" and collectively as the "Parties."

2. PURPOSE

The Disclosing Party intends to disclose certain Confidential Information (as defined below) to the Receiving Party for the following purpose(s):

(the "Purpose")

The Receiving Party agrees that the Confidential Information shall be used solely for the Purpose and for no other reason whatsoever.

3. DEFINITION OF CONFIDENTIAL INFORMATION

3.1. **"Confidential Information"** means any and all information, data, materials, documents, knowledge, and know-how, whether in written, oral, electronic, visual, or any other form, that is disclosed by or on behalf of the Disclosing Party to the Receiving Party, directly or indirectly, before or after the Effective Date of this Agreement, including but not limited to:

(a) **Technical Information:** source code, object code, software, firmware, algorithms, APIs, system architectures, network configurations, hardware designs, schematics, technical drawings, specifications, protocols, data models, databases, data structures, development tools, testing methodologies, quality assurance processes, IoT device configurations, smart systems designs, sensor data, platform infrastructure details, cloud configurations, cybersecurity measures, encryption methods, and technical documentation of any kind;

(b) **Business Information:** business plans, business strategies, market analyses, competitive intelligence, marketing plans, sales strategies, go-to-market strategies, distribution channels, supplier information, vendor agreements, partnership arrangements, joint venture details, merger and acquisition plans, expansion plans, organisational structures, and operational processes;

(c) **Financial Information:** financial statements, projections, forecasts, budgets, revenue data, cost structures, pricing models, pricing strategies, profit margins, investment plans, funding arrangements, valuation information, and any other financial data;

(d) **Customer and User Data:** customer lists, customer databases, user data, usage patterns, analytics, customer preferences, customer contracts, customer correspondence, lead lists, prospect lists, and any personally identifiable information of customers or users;

(e) **Trade Secrets:** proprietary processes, formulas, methods, techniques, inventions (whether patentable or not), discoveries, improvements, research and development activities, experimental work, product roadmaps, product designs, prototypes, and any information that derives independent economic value from not being generally known;

(f) **Employee and Personnel Information:** employee records, compensation structures, benefits information, personnel policies, recruitment strategies, training materials, performance evaluations, and organisational charts;

(g) **Intellectual Property:** patents, patent applications, trademarks, trademark applications, copyrights, trade dress, domain names, proprietary methodologies, and any other intellectual property rights or applications therefor;

(h) **Contractual Information:** terms of agreements with third parties, licensing arrangements, royalty structures, and any other contractual obligations or entitlements;

(i) **Any other information** that is marked, designated, or identified as "Confidential," "Proprietary," "Restricted," "Secret," or with similar designation at the time of disclosure; and

(j) **Any information** that, given the nature of the information or the circumstances surrounding its disclosure, a reasonable person would understand to be confidential or proprietary.

3.2. Confidential Information includes all notes, analyses, compilations, studies, summaries, memoranda, and other materials prepared by the Receiving Party that contain, reflect, or are derived from Confidential Information.

3.3. The failure to mark or designate information as confidential at the time of disclosure shall not affect its

status as Confidential Information if it would otherwise qualify under this Agreement.

4. OBLIGATIONS OF THE RECEIVING PARTY

The Receiving Party agrees to the following obligations:

4.1. **Non-Disclosure.** The Receiving Party shall not, without the prior written consent of the Disclosing Party, disclose, publish, or disseminate any Confidential Information to any third party, whether directly or indirectly, for any reason whatsoever.

4.2. **Non-Use.** The Receiving Party shall not use the Confidential Information for any purpose other than the Purpose set forth in Section 2 of this Agreement. The Receiving Party shall not use the Confidential Information for its own benefit or for the benefit of any third party.

4.3. **Limited Access.** The Receiving Party shall restrict access to the Confidential Information to only those of its employees, agents, advisors, or representatives (collectively, "Authorised Recipients") who (a) have a demonstrable need to know such information in connection with the Purpose, (b) have been informed of the confidential nature of the information, and (c) are bound by written confidentiality obligations no less restrictive than those contained in this Agreement. The Receiving Party shall be responsible for any breach of this Agreement by its Authorised Recipients.

4.4. **Security Measures.** The Receiving Party shall take all reasonable security measures to protect the Confidential Information from unauthorised access, disclosure, copying, use, or modification. Such measures shall be no less protective than those the Receiving Party uses to protect its own confidential information of a similar nature, and in no event less than a reasonable standard of care.

4.5. **No Copies.** The Receiving Party shall not copy, reproduce, or duplicate any Confidential Information except as reasonably necessary for the Purpose and with the prior written consent of the Disclosing Party.

4.6. **Breach Notification.** The Receiving Party shall promptly notify the Disclosing Party in writing (and in no event later than forty-eight (48) hours) upon becoming aware of any unauthorised access, disclosure, use, loss, or theft of any Confidential Information, whether actual or suspected. The Receiving Party shall cooperate fully with the Disclosing Party in investigating and remediating any such breach.

4.7. **Compliance with Law.** The Receiving Party shall comply with all applicable laws and regulations relating to the handling, storage, and protection of the Confidential Information, including but not limited to the Nigeria Data Protection Act 2023 and any successor legislation.

5. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

The obligations set forth in this Agreement shall not apply to information that the Receiving Party can demonstrate by clear and convincing evidence:

5.1. **Public Domain.** Was in the public domain at the time of disclosure, or subsequently entered the public domain through no fault, act, or omission of the Receiving Party or its Authorised Recipients;

5.2. **Prior Knowledge.** Was already lawfully in the possession of the Receiving Party prior to disclosure by the Disclosing Party, as evidenced by written records predating the date of disclosure;

5.3. **Independent Development.** Was independently developed by the Receiving Party without reference to, reliance upon, or use of the Confidential Information, as evidenced by written records;

5.4. **Third-Party Disclosure.** Was lawfully received by the Receiving Party from a third party who was not, to the Receiving Party's knowledge, under any obligation of confidentiality to the Disclosing Party with respect to such information; or

5.5. **Legal Compulsion.** Is required to be disclosed by applicable law, regulation, or order of a court or governmental authority of competent jurisdiction, provided that the Receiving Party shall (a) give the Disclosing Party prompt written notice of such requirement prior to disclosure (to the extent legally permissible), (b) cooperate with the Disclosing Party in seeking a protective order or other appropriate remedy to limit such disclosure, and (c) disclose only that portion of the Confidential Information that is legally required to be disclosed.

6. TERM AND DURATION

6.1. **Agreement Term.** This Agreement shall become effective on the Effective Date and shall remain in force for a period of three (3) years from the Effective Date, unless earlier terminated by either Party upon thirty (30) days' prior written notice to the other Party.

6.2. **Survival of Obligations — General Confidential Information.** The obligations of confidentiality and non-use with respect to Confidential Information (other than Trade Secrets) shall survive for a period of three (3) years from the date of disclosure of each item of Confidential Information, regardless of any earlier termination or expiration of this Agreement.

6.3. **Survival of Obligations — Trade Secrets.** The obligations of confidentiality and non-use with respect to any Confidential Information that constitutes a trade secret under applicable law shall continue in perpetuity, or for so long as such information remains a trade secret, whichever is longer.

7. RETURN AND DESTRUCTION OF MATERIALS

7.1. Upon the earlier of (a) the written request of the Disclosing Party, or (b) the termination or expiration of this Agreement, the Receiving Party shall, within five (5) business days:

(i) Return to the Disclosing Party all originals and copies of Confidential Information in any form (including documents, files, electronic media, notes, summaries, and any other materials containing or reflecting Confidential Information); or

(ii) At the Disclosing Party's election, destroy all such materials and permanently erase or delete all electronic copies of Confidential Information from its systems, devices, and storage media.

7.2. The Receiving Party shall provide a written certification, signed by an authorised officer or representative, confirming that all Confidential Information has been returned or destroyed in accordance with this Section, within five (5) business days of such return or destruction.

7.3. Notwithstanding the foregoing, the Receiving Party may retain one (1) archival copy of the Confidential Information solely for the purpose of compliance with applicable law or regulation, or as required by its standard document retention policies, provided that such retained copy remains subject to the confidentiality obligations of this Agreement.

8. NO LICENSE GRANTED

8.1. Nothing in this Agreement shall be construed as granting to the Receiving Party any licence, right, title, or interest in or to the Confidential Information, or any intellectual property rights of the Disclosing Party, whether by implication, estoppel, or otherwise.

8.2. All Confidential Information shall remain the sole and exclusive property of the Disclosing Party. No disclosure of Confidential Information under this Agreement shall constitute or be deemed to constitute an assignment, transfer, or conveyance of any proprietary right, title, or interest therein.

9. NO OBLIGATION TO TRANSACT

9.1. This Agreement does not obligate either Party to enter into any further agreement, business relationship, transaction, or arrangement of any kind.

9.2. Nothing in this Agreement shall be construed as a commitment, promise, or obligation by either Party to purchase, sell, license, invest, partner, employ, or engage in any business activity with the other Party.

9.3. Each Party reserves the right, in its sole discretion, to decline to enter into any further relationship or to terminate discussions at any time, for any reason or no reason, without liability to the other Party.

10. REMEDIES

10.1. **Acknowledgement of Irreparable Harm.** The Receiving Party acknowledges and agrees that any breach or threatened breach of this Agreement may cause the Disclosing Party irreparable harm for which monetary damages alone would be an insufficient remedy.

10.2. **Injunctive Relief.** The Disclosing Party shall be entitled to seek and obtain injunctive relief, specific performance, or other equitable remedies from any court of competent jurisdiction, without the necessity of proving actual damages or posting any bond or security, in addition to any other remedies available at law or in equity.

10.3. **Monetary Damages.** The Disclosing Party shall also be entitled to recover monetary damages, including consequential, incidental, and special damages, arising from any breach or threatened breach of this Agreement.

10.4. **Cumulative Remedies.** The remedies set forth in this Agreement are cumulative and not exclusive. The exercise of any one remedy shall not preclude the exercise of any other remedy available under this Agreement, at law, or in equity.

10.5. **Indemnification.** The Receiving Party shall indemnify, defend, and hold harmless the Disclosing Party and its officers, directors, employees, agents, and affiliates from and against any and all losses, damages, liabilities, costs, and expenses (including reasonable legal fees) arising from or related to any breach of this Agreement by the Receiving Party or its Authorised Recipients.

11. NON-SOLICITATION

11.1. During the term of this Agreement and for a period of twenty-four (24) months following its termination or expiration, the Receiving Party shall not, directly or indirectly:

(a) Solicit, recruit, hire, engage, or attempt to solicit, recruit, hire, or engage any employee, contractor, consultant, or agent of PECH Group Holdings Ltd;

(b) Induce, encourage, or attempt to induce or encourage any employee, contractor, consultant, or agent of PECH to terminate or alter their relationship with PECH; or

(c) Assist any third party in any of the activities described in subsections (a) or (b) above.

11.2. This Section shall not apply to general public advertisements or job postings that are not specifically targeted at employees or contractors of PECH.

12. GOVERNING LAW

12.1. This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Nigeria, without regard to its conflict of laws principles.

12.2. The Parties submit to the jurisdiction of the courts of the Federal Republic of Nigeria for the enforcement of this Agreement and any dispute arising hereunder, subject to the dispute resolution provisions set forth in Section 13 below.

13. DISPUTE RESOLUTION

13.1. **Negotiation.** In the event of any dispute, controversy, or claim arising out of or relating to this Agreement, the Parties shall first attempt to resolve the matter through good-faith negotiations between senior representatives of each Party for a period of not less than thirty (30) days from the date written notice of the dispute is delivered.

13.2. **Mediation.** If the dispute is not resolved through negotiation, the Parties agree to submit the dispute to mediation in Lagos, Nigeria, in accordance with the Arbitration and Mediation Act 2023 of the Federal Republic of Nigeria. The mediation shall be conducted by a single mediator mutually agreed upon by the Parties, or, failing agreement, appointed in accordance with the said Act.

13.3. **Arbitration.** If the dispute is not resolved through mediation within sixty (60) days of the commencement of mediation, the dispute shall be referred to and finally resolved by arbitration in Lagos, Nigeria, under the Arbitration and Mediation Act 2023 of the Federal Republic of Nigeria. The arbitration shall be conducted by a sole arbitrator mutually agreed upon by the Parties, or, failing agreement, appointed in accordance with the said Act. The language of the arbitration shall be English. The arbitral award shall be final and binding on the Parties.

13.4. **Interim Relief.** Nothing in this Section shall prevent either Party from seeking interim or injunctive relief from a court of competent jurisdiction at any time, including before, during, or after any negotiation, mediation, or arbitration proceeding.

14. GENERAL PROVISIONS

14.1. **Severability.** If any provision of this Agreement is held to be invalid, illegal, or unenforceable by a court of competent jurisdiction, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, or if such modification is not possible, such provision shall be severed from this Agreement. The invalidity, illegality, or unenforceability of any provision shall not affect the validity, legality, or enforceability of the remaining provisions, which shall continue in full force and effect.

14.2. **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written, relating to the subject matter of this

Agreement.

14.3. **Amendment.** No amendment, modification, or waiver of any provision of this Agreement shall be effective unless made in writing and signed by authorised representatives of both Parties.

14.4. **No Assignment.** Neither Party may assign, transfer, or delegate its rights or obligations under this Agreement, in whole or in part, without the prior written consent of the other Party. Any purported assignment without such consent shall be null and void. Notwithstanding the foregoing, the Disclosing Party may assign this Agreement to any successor entity in connection with a merger, acquisition, or sale of all or substantially all of its assets.

14.5. **No Waiver.** The failure of either Party to enforce any provision of this Agreement shall not constitute a waiver of such provision or of the right to enforce it at a later time. No waiver of any breach shall be deemed a waiver of any subsequent breach.

14.6. **Counterparts.** This Agreement may be executed in two or more counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Execution by electronic signature or scanned signature transmitted by email shall be deemed valid and binding.

14.7. **Notices.** All notices, requests, demands, and other communications required or permitted under this Agreement shall be in writing and shall be deemed to have been duly given when (a) delivered personally, (b) sent by registered mail or reputable courier service to the addresses set forth in this Agreement, or (c) sent by email with confirmation of receipt. Notices to PECH shall be directed to:

PECH Group Holdings Ltd Lagos, Nigeria Website: pechgroupholdings.tech Email: _____

Notices to the Receiving Party shall be directed to the address and email set forth in Section 1 above.

14.8. **Relationship of the Parties.** Nothing in this Agreement shall be construed to create a partnership, joint venture, agency, employment, or fiduciary relationship between the Parties.

14.9. **Headings.** The headings in this Agreement are for convenience of reference only and shall not affect the interpretation or construction of this Agreement.

15. SIGNATURE BLOCK

IN WITNESS WHEREOF, the Parties have executed this Non-Disclosure Agreement as of the date last written below.

P E C H G R O U P H O L D I N G S L T D

DISCLOSING PARTY — PECH Group Holdings Ltd

Signature:	_____
Name:	_____
Title:	_____
Date:	_____

Witness for Disclosing Party:

Signature:	_____

Name:	_____
Address:	_____
Date:	_____

RECEIVING PARTY

Signature:	_____
Name:	_____
Title:	_____
Organisation:	_____
Date:	_____

Witness for Receiving Party:

Signature:	_____
Name:	_____
Address:	_____
Date:	_____

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